

Sudhanshu Dhar Tripathi v. State of Uttar Pradesh

Allahabad High Court · Division Bench · 28 May 2025 · 2025:AHC:91314-DB · Writ-C No. 17346 of 2025 · **Writ disposed of; petitioner directed to CGRF under Clause 7.10.**

HEADNOTE

A reasoned order under Clause 6.5 of the Electricity Supply Code, 2005 is not interfered with in writ jurisdiction where an alternative remedy exists. The petitioner was directed to approach the Consumer Grievance Redressal Forum under Clause 7.10 within two weeks; CGRF was to hear him and pass a reasoned order in accordance with law within eight weeks of filing.

FACTUAL SUMMARY

Sudhanshu Dhar Tripathi filed a writ petition in the Allahabad High Court challenging an order passed under Clause 6.5 of the Electricity Supply Code, 2005. Counsel for the State and the other respondents submitted that an alternative remedy was available against that order. The Division Bench heard the parties and perused the record of the Clause 6.5 proceeding before disposing of the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ interference with reasoned Clause 6.5 order

HOLDING

Where the order under challenge is a reasoned order passed under Clause 6.5 of the Electricity Supply Code, 2005 and an alternative remedy is available, the writ court should not interfere. ¶ 2-3

HOLDING-UNIT · UP-2005::7.10

CGRF route after Clause 6.5 order

HOLDING

The petitioner was directed to approach the Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, within two weeks. If such an application is filed within that time, CGRF shall grant an opportunity of hearing and pass a reasoned order in accordance with law within eight weeks of filing. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 ORDER

The Court did not examine the substance of the consumer grievance; it treated the impugned order as reasoned and relegated the petitioner to CGRF. ¶ 3-4